Rajendra S Raikwar vs Central Bureau Of Investigation on 21 August, 2024

Author: Dinesh Kumar Sharma

Bench: Dinesh Kumar Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.A. 583/2022, CRL.M.A. 8540/2023
RAJENDRA S RAIKWAR
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CENTRAL BUREAU OF INVESTIGATION
Through: Mr. Rajesh Kuma
Changez Ali Kha
+ CRL.A. 99/2023, CRL.M.A. 8506/2023, CRL.
CRL.M.A. 19445/2023,
MAHAN MUKHERJEE
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ve
CENTRAL BUREAU OF INVESTIGATION .
Through: Mr. Rajesh Kumar,
Changez Ali Khan,
CORAM:
HON'BLE MR. JUSTICE DINESH KUMAR SHARMA
ORDER

% 21.08.2024 CRL.M.(BAIL) 1407/2022 (suspension of sentence) in CRL.A. 583/2022 CRL.A. 99/2023, CRL.M.A. 8506/2023, CRL.M.A. 8507/2023,

1. The appellants in this case were granted interim suspension of sentence vide order dated 17.02.2023 on the conditions that the fine This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 27/08/2024 at 21:03:00 an amount of Rs. 65 lacs be deposited within four weeks of their realisation with a bank. Vide order dated 26.07.2023, this Court asked the CBI to verify the following aspects;

i. Whether the sum of Rs.65,00,000/- has been deposited by the two applicants along with the fine

in terms of the order passed by this Court on 17th February, 2023.

ii. Whether there has been a valid settlement between the applicants and the Punjab National Bank as noted in paragraph 5 of the order dated 17th February, 2023.

2. In terms of order, the CBI has filed the verification report. In the verification report, the CBI submits that the amount of Rs.65,00,000/- deposited by the appellants. It has also been stated that the fine amount of Rs.20,00,000/- has been deposited by the appellant Mahan Mukherjee and fine amount of Rs.8,00,000/- appellant Rajendra S Raikwar. The verification report also submits that the onetime settlement has been done between the M/s Ekka Buildwell Pvt. Ltd. and Punjab National Bank (PNB) wherein an amount of Rs.1 crore was required by the PNB to release a mortgage property bearing No.M-154, Greater Kailash, New Delhi-48. M/s Ekka Buildwell Pvt. Ltd. has paid the said amount to PNB.

3. Sh. Rajesh Kumar, learned Special counsel for CBI has opposed the confirming the interim suspension of sentence on various grounds;

i. Learned SPP submits that as per the verification report, the onetime settlement has been done by M/s Ekka Buildwell Pvt. Ltd. and the payment has not been made by the appellants. Learned SPP submits that thus, the benefit of suspension of sentence cannot This is a digitally signed order.

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ii. Learned SPP submits that the appellant Mahan Mukherjee is also involved in another case arising out of case FIR bearing No. RC 5(E)/2005/EOW-I/DLI in CC No. 31/2021.

4. Learned SPP has also opposed the application on the ground that it is a serious case of bank fraud. Learned Special counsel for CBI submits that this Court in Jai Bhagwan v. State (NCT of Delhi) 2007 SCC OnLine Del 1502 has categorically inter alia held that such offences are serious in nature and should not be taken on the equivalent pedestrian with the other offences. Learned SPP submits that the spirit of law laid down in such cases are that the suspension of sentence should not be granted in routine.

5. Learned SPP also relied upon K.C. Sareen v. CBI, Chandigarh (2001) 6 SCC 584. However, the perusal of the judgments indicates that the judgment is related on the suspension of conviction not the suspension of sentence. Learned SPP has emphasized that the present cases are not fit for the suspension of sentence as the appellants have undergone custody of around 3-4 months only. Learned SPP has also relied upon CBI v. Maninder Singh (2016) 1 SCC 389.

6. Mr. Mohit Mathur, learned senior counsel has appeared for the Rajendra S Raikwar and Mr.Rahul Tyagi, Mr. Jatan Khatri learned counsel appeared for the Mahan Mukherjee submit that interim suspension of sentence was granted by this Court vide order dated 17.02.2023. Learned

senior counsel submits that this order has not been misused by the appellants in any manner. It was also been submitted that this was also not challenged by the CBI at any firm.

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7. There is no doubt that the suspension of sentence in any case and particularly in the corruption case has to be considered seriously. The suspension of sentence can be granted only after taking into account the totality of facts and circumstances. However, the appellants in the present case were on the bail during the trial. As per board, the appeals may take some time. In case K.C.Sareen v. CBI, Chandigarh (supra), the Apex Court inter alia held the superior Court should normally suspend the sentence of imprisonment until disposal of the appeal because refusal thereof would render the very appeal otiose unless such appeals could be heard soon after the filing of the appeal. It is unfortunate that the board does not permit the immediate disposal of such appeals. The liberty as granted to the appellants has not been misused and hearing of appeal may take some time. Without going into the merits of the case, the interim suspension granted to the appellants vide order dated 17.02.2023 is confirmed. The sentence is suspended of the appellants till the disposal of the case on the same terms and conditions.

8. In view of the above, the present application CRL.M.(BAIL) 1407/2022 stands disposed of.

DINESH KUMAR SHARMA, J AUGUST 21, 2024 Pallavi/KR This is a digitally signed order.

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